

## 24LBCV01741 24LBCV01741

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-25

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On 2/13/26, Plaintiff filed a notice of settlement of entire case. On 4/14/26, the parties appeared at an OSC re: Dismissal (Settlement). Because there is a minor plaintiff in the action, the Court scheduled a hearing on a petition to approve compromise of minor for 6/25/26. The Court also continued the OSC re: Dismissal to 6/25/26. Because papers had not been filed prior to the 6/25/26 hearing, the Court continued the hearing to 8/25/26.

On 7/23/26, Petitioner filed papers in support of the petition. The minor plaintiff was exposed to mold, cockroaches, beg bugs, and substandard conditions as a result of Defendants' acts. The minor plaintiff continues to use an inhaler and attributes his condition to the above-detailed exposure to various toxins in the unit.

Defendants have agreed to pay the minor plaintiff \$65,000 to settle his claims, and to pay his mother and GAL, Veronica, \$135,000 to settle her claims.

The mother's claims were settled for a greater amount because she alleges she suffered a sexual assault as a result of the condition of the property, rendering her damages more extensive than those of her son.

If the minor's settlement is approved, \$26,000 will be used for attorneys' fees and the balance of \$39,000 will be invested in a single premium deferred annuity. The Court typically limits attorneys' fees in cases involving minors to 25% of the minor's settlement, but has reviewed Counsel's declaration in support of the request and is inclined to award the

40% requested in light of the more extensive effort that went into settling this action.

Pursuant to CRC 7.952, unless excused from doing so, Petitioner and Plaintiff must appear and testify to the satisfaction of the Court before the Court grants the petition. Plaintiff is 17 years of age, and therefore the Court will require him to appear and testify before granting the petition.

Petitioner lodged a proposed order with the petition, but the majority of the order is not filled out. Petitioner must lodge a proposed order with all details filled out on the form and/or bring a proposed order to Court. If the Court is satisfied with the testimony at the hearing, and if the completed proposed order is lodged prior to the hearing, the Court will process the order at the conclusion of the hearing.